



U.S. Customs and Border Protection

PUBLIC VERSION

February 25, 2026

Excellent Sharp Inc.
18121 E Hampden Ave, Unit C 1115
Aurora CO 80013

VASS Pipe & Steel Co., Inc.
158 Third St.
Mineola NY 11501
sales@vasspipe.com

Haylier International Limited
4/F Lucky Center, Room 413
165-171 Wan Chai Road
Wan Chai, Hong Kong

Marmon/Keystone LLC
225 E. Cunningham St.
Butler, PA 16001
rglielmi@marmonkeystone.com

Tejas Tubular Products, Inc.
8526 Green River Dr.
Houston, TX 77028
sales@tejastubular.com

Nicholas J. Birch, Esq.
On behalf of Vallourec Star, L.P.; BENTELER Steel/Tube Manufacturing Corp.; and Tenaris
Bay City, Inc.
Schagrin Associates
900 Seventh Street, NW
Suite 500
Washington, DC 20001
nbirch@schagrinassociates.com

Re: Notice of Initiation of Investigation and Interim Measures - EAPA Case Numbers 8222-8223
and 8242-8244 (Consolidated Case 8222) – Seamless Carbon and Alloy Steel Standard, Line and
Pressure Pipe

To the Counsel and Representatives of the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection (“CBP”) has commenced a formal investigation of Excellent Sharp Inc. (“Excellent Sharp”), VASS Pipe and Steel (“VASS”), Haylier International Limited (“Haylier”), Marmon/Keystone LLC (“Marmon/Keystone”), and Tejas Tubular Products, Inc. (“Tejas Tubular”) (collectively, the Importers) under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (“EAPA”). CBP is investigating whether the Importers evaded antidumping duty (“AD”) and countervailing duty (“CVD”) orders A-570-956 and C-570-957 on seamless carbon and alloy steel standard, line and pressure pipe (“SLP pipe”) from the People’s Republic of China (“China”) when importing into the customs territory of the United States.¹ CBP is investigating whether the Importers evaded duties on Chinese-origin SLP pipe by way of transshipment through Thailand via: a) Petroleum Equipment (Thailand) Co., Ltd. (“PET”); b) Energy Tubulars Co., Ltd. (“Energy Tubulars”); c) TSP Precision Steel Tube Manufacturing (Thailand) Co., Ltd (“TSP”); or d) other company names adopted by PET. CBP has imposed interim measures because there is reasonable suspicion that the Importers entered merchandise covered by these AD/CVD orders into the customs territory of the United States through evasion.²

Period of Investigation

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are those “entries of allegedly covered merchandise made within one year before the receipt of an allegation....” Entry is defined as “the entry, or withdrawal from warehouse for consumption, of merchandise in the customs territory of the United States.”³ CBP acknowledged receipt of the properly filed allegations against the Importers on October 29, 2025.⁴ The entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from October 29, 2024, through the pendency of this investigation.⁵

Initiation

Section I. Legal Standards

CBP will initiate an investigation if it determines that “{t}he information provided in the allegation...reasonably suggests that the covered merchandise has been entered for consumption

¹ See *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People’s Republic of China: Final Determination of Sales at Less Than Fair Value and Critical Circumstances, in Part*, 75 FR 57449 (September 21, 2010), as amended in *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People’s Republic of China: Amended Final Determination of Sales at Less Than Fair Value and Antidumping Duty Order*, 75 FR 69052 (November 10, 2010); see also *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People’s Republic of China: Final Affirmative Countervailing Duty Determination, Final Affirmative Critical Circumstances Determination*, 75 FR 57444 (September 21, 2010), as amended in *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People’s Republic of China: Amended Final Affirmative Countervailing Duty Determination and Countervailing Duty Order*, 75 FR 69050 (November 10, 2010) (“SLP AD/CVD Orders”).

² See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

³ See 19 U.S.C. § 1517(a)(4); see also 19 C.F.R. § 165.1.

⁴ See Email from CBP, “EAPA 8222, 8223, 8242, 8243, and 8244 - Official Receipt of Properly Filed Allegations,” dated October 29, 2025 (“Official Receipt”). The filers are Vallourec Star, L.P.; BENTELER Steel/Tube Manufacturing Corp.; and Tenaris Bay City, Inc. (“Allegers”), U.S. producers or manufacturers of domestic like merchandise in the United States.

⁵ See 19 C.F.R. § 165.2.

into the customs territory of the United States through evasion.”⁶ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁷ Thus, the allegation must reasonably suggest not only that merchandise covered by an AD and/or CVD order was entered into the customs territory of the United States by the importer alleged to be evading, but also that such entry was made with a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.

The information described below amounted to reasonable suggestion of evasion and served as the basis for the initiation of the investigations.

Section II-A. Background of EAPA Actions Involving PET—

There are two preceding EAPA investigations that involve the Thai claimed manufacturer PET: EAPA cons. investigation 7890 and EAPA cons. investigation 8164. EAPA cons. 7890 covered the period of investigation (“POI”) February 1, 2023, through the pendency of that investigation.⁸ EAPA cons. 8164 covers the POI February 24, 2024, through the pendency of that investigation.⁹ As such, PET has had entries covered by EAPA investigation periods as far back as February 1, 2023. In EAPA cons. 7890, CBP determined on February 24, 2025, that there existed substantial evidence that various importers evaded AD and CVD Orders on oil country tubular goods (OCTG) from China (A-570-943 and C-570-944) by way of transshipment through Thailand via PET.¹⁰ In EAPA cons. 8164, CBP imposed interim measures on June 18, 2025, because CBP found reasonable suspicion that the Importers evaded AD and CVD Orders on both SLP (A-570-956 and C-570-957) and OCTG (A-570-943 and C-570-944) from China by way of transshipment through Thailand via PET.¹¹ CBP also found evidence that TSP was involved in transshipment of the same Chinese-origin products through Thailand.¹²

The instant allegations identified importers Excellent Sharp, VASS, Haylier, Marmon/Keystone, and Tejas Tubular who have imported goods from PET, a claimed manufacturer in Thailand. CBP has twice analyzed PET, and verified it once, either imposing interim measures due to

⁶ See 19 C.F.R. § 165.15(b).

⁷ See 19 C.F.R. § 165.1.

⁸ See Allegations at Exhibit 2, page 4.

⁹ *Id.* at Exhibit 5, page 2.

¹⁰ *Id.* at Exhibit 2, CBP’s Notice, “Notice of Determination as to Evasion,” dated February 24, 2025 (7890 Determination as to Evasion): page 61. See also Allegations at Exhibit 3: July 2, 2025, Administrative Review of “EAPA Cons. 7890 February 24, 2025, Determination”, in which the EAPA Cons. 7890 determination is affirmed.

¹¹ *Id.* at Exhibit 5, CBP’s Notice, “Notice of Initiation of Investigation and Interim Measures – EAPA Cons. Case 8164,” dated June 18, 2025 (8164 NOI) at, e.g., pages 1-2 and 16. The 8164 NOI cites to: *Certain Oil Country Tubular Goods from the People’s Republic of China: Final Affirmative Countervailing Duty Determination, Final Negative Critical Circumstances Determination*, 74 FR 64045 (December 7, 2009), as amended in *Certain Oil Country Tubular Goods from the People’s Republic of China: Amended Final Affirmative Countervailing Duty Determination and Countervailing Duty Order*, 75 FR 3203 (January 20, 2010); see also *Certain Oil Country Tubular Goods from the People’s Republic of China: Final Determination of Sales at Less Than Fair Value, Affirmative Final Determination of Critical Circumstances and Final Determination of Targeted Dumping*, 75 FR 20335 (April 19, 2010), as amended in *Certain Oil Country Tubular Goods from the People’s Republic of China: Amended Final Determination of Sales at Less Than Fair Value and Antidumping Duty Order*, 75 FR 28551 (May 21, 2010) (OCTG AD/CVD Orders).

¹² *Id.* at Exhibit 5, page 17.

suspected transshipment or determining there was substantial evidence of evasion. The most authoritative CBP finding occurred on February 24, 2025, in EAPA investigation 7890, where CBP concluded that PET served as a transshipment point for merchandise originating from China. Subsequently, on June 18, 2025, CBP issued interim measures against importers in EAPA investigation 8164, representing the second-most authoritative decision to date. In that case, there was reasonable suspicion that importers were bringing Chinese-origin merchandise from PET into the customs territory of the United States without declaring it as subject to AD/CVD duties.

Investigation 7890

In the EAPA investigation 7890 Determination as to Evasion, CBP found that: PET's production line was purportedly not assembled, its American Petroleum Institute (API) license was deactivated before its expiration date, PET is owned by three Chinese nationals,¹³ and PET's raw material documents were surreptitiously copied from each other to give the appearance that more raw material shipments occurred.¹⁴ In the EAPA investigation 7890 Determination as to Evasion, numerous record documents corroborate that PET purchased and imported hollow steel billets from China; the physical characteristics of PET's hollow steel billets from China place them firmly within the scope of the OCTG AD/CVD Orders.¹⁵ PET provided CBP with false statements and surreptitiously altered raw material documents; as such, the 7890 administrative record did not contain any reliable evidence to analyze OCTG characteristics and CBP determined that all of the OCTG PET exported to the United States during the POI was Chinese-origin.¹⁶

EAPA investigation 7890's NOI was issued on May 31, 2024.¹⁷ Subsequently, from October 28, 2024, to November 1, 2024, CBP conducted an in-person verification at PET's facility in Thailand of the response data that PET had filed in response to CBP questionnaires during the course of the 7890 investigation.¹⁸ The week after the PET verification, since the team of CBP personnel was still in Thailand from November 4, 2024, through November 7, 2024 for a verification of another manufacturer, Thai Oil Pipe Co., Ltd., the CBP team conducted a drive-by of the PET premises to see if the presence of vehicles matched the expectation that a reasonable person would have of a facility engaged in manufacturing operations.¹⁹

A drive-by of the PET factory was conducted on November 7, 2024, at 9:10 AM during normal business hours when the factory should have been in operation; CBP personnel found a low volume of vehicles and motorcycles in front of the factory and closed warehouse gates. The drive-by report noted that there were fewer vehicles present during the drive-by on November 7 than were present during the PET verification conducted from October 28, 2024, to November 1, 2024.²⁰

In addition to the observations gained from the drive-by conducted the week after verification, during the actual week of the PET verification, CBP officials observed several indicators of evasion during that verification that are of relevance to the background that informs the initiation

¹³ *Id.* at Exhibit 2, page 41.

¹⁴ *Id.* at Exhibit 2, page 4, 24, and 59.

¹⁵ *Id.* at Exhibit 2, page 21.

¹⁶ *Id.* at Exhibit 2, pages 20-26.

¹⁷ *Id.* at Exhibit 2, page 4.

¹⁸ *Id.* at Exhibit 4.

¹⁹ *Id.* at Exhibit 4, page 1.

²⁰ *Id.* at Exhibit 4, page 15.

of this investigation. PET reported to CBP officials during verification that the PET factory produced both line pipe (the “L” in SLP pipe) and OCTG.²¹ PET’s claimed capability to produce both SLP and OCTG is reiterated and emphasized by: a) PET’s website, which claimed PET is a producer of SLP pipe; and b) PET’s July 9, 2024 response to CBP’s request for information in which PET explained that it produced OCTG.²² Also during verification, PET was unable to successfully conduct various product testing and production procedures, did not have an explanation for abnormally low consumption given their claimed production activities.²³

The verification further revealed other PET actions that indicate deceptiveness—for instance, not all the machinery CBP officials viewed during the October 28 through November 1, 2024 verification was set up and evident in a video PET submitted to CBP prior to its on-site verification.²⁴ One worker at the verification told the CBP team that he could not provide his name because he had been instructed to not speak with the CBP team.²⁵

These actions indicate that a) PET took steps to misrepresent the machinery that PET included in its normal operational processes when CBP was verifying the production facilities and was not fully transparent with CBP about its production processes and b) PET instructed workers to withhold information from CBP. Furthermore, although CBP asked multiple times during the verification to see a breakdown of sales after May 2024, PET refused to provide that sales list.²⁶ This refusal to provide the sales list indicates that PET was not cooperative with CBP and attempts to hide information from CBP.

In investigation 7890, CBP found that PET provided mill test certificates with major discrepancies, which corroborated the notion that PET does not report reliable documents to CBP.²⁷ CBP also found that the major discrepancies in mill test certificates were more than clerical errors and appeared be a result of PET’s surreptitious duplication and falsification of documents.²⁸ In the 7890 Determination as to Evasion, CBP summarized five examples of the major discrepancies to support its determination that PET’s mill test certificates were not authentic or reliable.²⁹

In the February 24, 2025, EAPA 7890 Determination as to Evasion, CBP found that PET surreptitiously copied documents to give CBP a misrepresented impression of the raw material shipments received and used in its OCTG production.³⁰ In EAPA cons. 7890, PET provided CBP with sales contracts, invoices, packing lists, proofs of payments, Thai import declarations, and mill test certificates ostensibly generated from the manufacturing and sales process of four different importers (*i.e.*, Amek, Centric Pipe, LE Commodity, and TSPGA for entry numbers 9168, 0302, 0211, and 4954, respectively).³¹ However, each set of those documents contained

²¹ *Id.* at Exhibit 5, page 4. Correspondingly, PET’s website also claims that it has an American Petroleum Institute (API) 5L license; the 5L license is a license for merchandise in the SLP pipe scope of the *AD/CVD Orders*. *See also* Allegations at Exhibit 8, page 5.

²² *Id.* at Exhibit 8, pages 2, and 5-6. *See also* Allegations at Exhibit 13, page 2.

²³ *Id.* at Exhibit 4.

²⁴ *Id.* at Exhibit 4, page 15.

²⁵ *Id.* at Exhibit 4, page 8.

²⁶ *Id.* at Exhibit 4, page 15.

²⁷ *Id.* at Exhibit 2, page 50.

²⁸ *Id.*

²⁹ *Id.* at Exhibit 2, pages 50-51.

³⁰ *Id.* at Exhibit 2, pages 4, 24, and 59.

³¹ *Id.* at Exhibit 2, 7890 Determination as to Evasion, page 24 (which cites to the Amek CF-28 Response, the Centric Pipe CF-28 Response, the LE Commodities CF-28 Response, and the TSPGA CF-28 Response on the 7890

numerous matching fields indicating that one set of documents was copied from the other.³² PET then changed the dates so that the dates appeared to have occurred before each entry's export date; the intended effect of PET's duplication and date field changes was to create a misrepresentation of raw materials used in alleged production of subject merchandise.³³

PET has been evasive to CBP about its organization structure and affiliation—at one point PET denied being part of a group and subsequently, in an apparent about-face, affirmed that there was actually affiliation. The February 24, 2025, Determination as to Evasion for investigation 7890 summarized key findings pertinent to PET's denial of affiliate relationships, namely that PET had reported to CBP that it was not part of a group, that it was not under "common control" with another person by a third person, that it was not affiliated with other persons involved with the subject merchandise.³⁴ However, subsequent to its initial claims, when asked in a supplemental request for information about affiliation, PET provided information that revealed that there was affiliation between a supplier and PET by common ownership, which was a contradiction with PET's earlier denial of affiliate relationships.³⁵ In light of the contradictions and PET's eventual reveal of information that demonstrated affiliation between PET and the supplier through common ownership, CBP determined that PET was part of a group linked to a supplier and that PET had initially made a false statement when it said, "PET is not part of a group."³⁶ In addition, CBP identified PET's affiliation with a supplier through common ownership, despite PET having made false statements concerning its affiliation with OST Group (North America), Inc. While PET had claimed that it: "{did} not know OST Group (North America) {and} PET does not have relationship {sic} with this company," CBP determined that that statement denying PET's relationship with OST Group (North America) was false. Despite PET's claims of having no knowledge or relationship with OST Group (North America), CBP determined these statements to be false.³⁷ Furthermore, OST Group (North America) was a 2016 founder of one of the EAPA cons. 7890 investigation's importers: TSPGA LLC.³⁸ CBP determined that the importer TSPGA LLC and PET behaved in a way that was consistent with TSPGA being affiliated with PET.³⁹ In short, through its evasiveness of its linked structures, PET attempts to obscure information from CBP about supplier relationships and raw material origins from any affiliated entities, as well as attempting to obscure information about relationship with an importer.

Investigation 8164

CBP conducted cargo examinations on PET shipments that, while within the scope of the 8164 investigation, also provide crucial background for the initiation of this cons. 8222 investigation, as PET is implicated in both those examinations and the present allegation scheme.

administrative record). Footnote 8 of the 7890 Determination as to Evasion, at Exhibit 2 of the Allegations, identifies the entry numbers for the CF-28 responses in the 7890 investigation (Amek had entry number ending in 9168; Centric Pipe had entry number ending in 0302; LE Commodities had entry number ending in 0211; and, TSPGA had entry number ending in 4954).

³² See Allegations at Exhibit 2, page 24.

³³ *Id.*

³⁴ *Id.* at Exhibit 2, page 28.

³⁵ *Id.* at Exhibit 2, page 28-29. The 7890 Determination as to Evasion at Exhibit 2 of the Allegations is a public version; the supplier's name is not publicly disclosed.

³⁶ *Id.*, at Exhibit 2, page 28.

³⁷ *Id.*

³⁸ *Id.*

³⁹ *Id.* at Exhibit 2, page 30.

In investigation 8164, CBP conducted a cargo exam on April 7, 2025, where the entry summary listed VM Industry Co., Ltd. (“VM Industry”) as the manufacturer; however, the cargo exam photo showed “PET Steel” was painted on the pipe, which indicated that PET was using names of other manufacturers (e.g., VM Industry) to attempt to enter merchandise being transshipped by PET.⁴⁰ Additionally, that cargo exam was conducted on shipments for which the entry documents denoted seamless drill pipes; however, the photographs, bill of lading, pipe tags, and API specification standards claimed in the cargo all indicated the merchandise was actually covered OCTG.⁴¹

For investigation 8164, on September 27, 2024, and October 4, 2024, CBP conducted cargo exams on three shipments imported from the Malaysian company MH Megah Maju Enterprise (MH Megah).⁴² The cargo exams revealed a falsely declared country of origin (Malaysia), falsely declared manufacturer (MH Megah), and misclassification (as drill pipe).⁴³

In attempts to evade *AD/CVD Orders*, PET engaged in merchandise misrepresentation, where one page of an entry documentation packet was described as a type of merchandise subject to *AD/CVD Orders* and elsewhere at a different page in the same packet of entry documentation was described as a different type of merchandise not subject to *AD/CVD Orders*. Specifically, in EAPA cons. 8164 CBP issued CF-28 questionnaires to two importers (USA Lee Long and Leadtop), each with two calendar year 2024 entries from VM Industry: the two entry numbers for USA Lee Long ended in digits 4393 and 9442 and the two entry numbers for Leadtop ended in digits 6940 and 8910.⁴⁴ Both importers claimed they entered drill pipe—which is outside the scope of both the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*—at some page of the entry summary CF-28 response packets.⁴⁵ Specifically, Leadtop provided an invoice, packing list, and bill of lading indicating that it entered drill pipe; USA Lee Long entered its merchandise as SLP pipe, but then claimed in its CF-28 response that this SLP pipe product classification was incorrect, and that the merchandise was actually drill pipe, though evidence indicated it was not drill pipe, but rather covered OCTG.⁴⁶

In addition to merchandise misrepresentation, while importers USA Lee Long and Leadtop had entered entries exported by VM Industry, both USA Lee Long and Leadtop in their CF-28 responses provided production documents that listed PET’s name in the header. The fact that the importers had entries that were exported by VM Industry, yet had PET insignia in the headers of the production documents, viewed in conjunction with the importers’ explanation that VM Industry is a Thai trading company that exported PET’s merchandise, all collectively show that the merchandise actually originated from PET.⁴⁷

As noted above, in investigation 7890, CBP determined that PET’s mill test certificates were unreliable and falsified; as also explained in the investigation 8164 NOI, CBP similarly found

⁴⁰ *Id.* at Exhibit 5, page 13. The cargo exam performed on April 7, 2025, was for the importer GME Trade Ease’s entry number ending in digits 8045 and was formally entered on April 25, 2025.

⁴¹ *Id.*

⁴² *Id.* at 14.

⁴³ *Id.* at Exhibit 5, page 13-15.

⁴⁴ *Id.* at Exhibit 5, pages 8-10. The importer USA Lee Long reported a CF-28 response April 14, 2025 to CBP for VM Industry concerning the two entries ending in digits 4393 and 9442; *see* Allegations at Exhibit 5, page 8. The importer Leadtop reported a CF-28 response dated April 6, 2025 for VM Industry concerning two entries ending in digits 6940 and 8910.

⁴⁵ *Id.* *See also* Allegations at 9, where the Allegers emphasize that drill pipe is outside the scope of both the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*.

⁴⁶ *Id.* at Exhibit 5, page 10.

⁴⁷ *Id.*

any PET-issued mill test certificates reported by importers during the 8164 investigation to be unreliable.⁴⁸ In addition, in the June 18, 2025, EAPA 8164 NOI, CBP found that PET again supplied some of the same surreptitiously copied raw material documents via several importers' CF-28 responses.⁴⁹

This background analysis above, based on information provided in the allegations, indicates that two EAPA investigations prior to the initiation of the cons. 8222 investigation focused on specific patterns of PET shipment activity. The Allegers identified new, distinct patterns of shipment activity as explained below.

Section II-B. Background Shipment Activity Outside the Scope of Preceding EAPA Investigations—June 2025 Onset of the Claimed Manufacturer Energy Tubular Co., Ltd.'s Exports to the United States

PET has a history of using other company names for shipments. The Allegers identified that, since June 2025, shipments of various seamless pipe have been imported into the U.S. and imported as produced by Energy Tubulars Co., Ltd. ("Energy Tubulars").⁵⁰ The Allegers claim that Energy Tubulars is a new name for PET and that PET is engaging in the same behavior to disguise its exports and evade duties.⁵¹

The addresses for PET and Energy Tubulars are almost identical, the only difference in the address appears to be a lot or building number, which is 7/522 for PET and 7/616 for Energy Tubulars.⁵²

Petroleum Equipment (Thailand) Co., Ltd.	Energy Tubulars Co., Ltd.
7/522 Moo 6, Mapyangphon Plakdaeng, Rayong, 21140 Thailand	7/616 Moo 6, Mapyangphon Plakdaeng, Rayong, 21140 Thailand

While PET has a history of shipments and involvement in two other EAPA investigations, this shipment activity from Energy Tubulars is a distinct pattern since it is an appearance of a distinct Thai company name; this new company and the importers with shipments from Energy Tubulars are the basis for the scope of the Allegations as described subsequently.

Section III. Allegations Descriptions of the Importers Alleged Transshipment Schemes

As noted above, the Allegers filed Allegations of evasion on the importers: Excellent Sharp, VASS, Haylier, Marmon/Keystone, and Tejas Tubular.⁵³

In addition to the evidence discussed in the prior two sub-sections, the Allegations provide evidence in support of the claim that:

- Excellent Sharp imported seamless SLP pipe from Energy Tubulars.⁵⁴ Excellent Sharp is a shell company; its business registration shows that its registration address is 18121 E

⁴⁸ *Id.* at Exhibit 5, page 9.

⁴⁹ *Id.* at Exhibit 5, page 10-11. Page 10 describes raw material documents submitted in investigation 8164; page 11 summarizes documents submitted in investigation 7890.

⁵⁰ *See* Allegations at 10 and Exhibit 7.

⁵¹ *See* Allegations at 1-2.

⁵² *Id.* at 10-11, page 5 of Exhibit 8, and Exhibit 14.

⁵³ *See* Allegations.

⁵⁴ *See* Excellent Sharp Allegation at 6-7 and Exhibit 7.

Hampden Ave Unit C, 1115 Aurora CO 80013; however that address is actually a virtual mailbox service.⁵⁵ Excellent Sharp's business registration shows that its Colorado office address is reported to be: 756 W Jackson St, Morton IL 61550; however, evidence shows that the office address is actually the address of a Chinese buffet restaurant.⁵⁶

- VASS imported seamless SLP pipe from Energy Tubulars.⁵⁷ VASS is registered in New York with headquarters at: 158 Third St, Mineola NY 11501.⁵⁸
- Haylier imported seamless SLP pipe from PET.⁵⁹ The Alleger also noted that Haylier imported OCTG and was found to have evaded AD/CVD Orders in the 7890 investigation.⁶⁰ Haylier's address is: Room 413, 4/F Lucky Center, 165-171 Wan Chai Road, Wan Chai, Hong Kong.⁶¹
- Marmon/Keystone imported seamless SLP pipe from PET.⁶² Marmon/Keystone's address is given as: 1345 East Lexington Avenue, Pomona CA 91766.⁶³
- Tejas Tubular imported seamless SLP pipe from PET.⁶⁴ Tejas Tubular's address is given as: 8526 Green River Dr., Houston TX 77028.⁶⁵

The Allegations show that each of the Importers had shipments from either PET or Energy Tubulars. Both PET and Energy Tubulars have an almost identical address in Thailand indicating that both PET and Energy Tubulars are at extremely proximate locations. The Allegers claim that PET and Energy Tubulars are points of transshipment for Chinese-origin Merchandise, as discussed below. Since Energy Tubulars is at essentially the same address as PET, the Alleger claims that Energy Tubulars is a company name adopted by PET and that there is reason to believe that Energy Tubulars is likewise transshipping Chinese-origin merchandise.⁶⁶

Besides the address for both companies being almost identical and demonstrating a link between the two companies, the Alleger points out other evidence demonstrating links between PET and Energy Tubulars:

- 1) Both Energy Tubulars and PET have provided API with the same telephone number (+66 886131848): API issued a certification to both Energy Tubulars (effective date July 25, 2025) and PET (effective date March 29, 2024); on both certificates, the facility phone number is identical.⁶⁷
- 2) Both Energy Tubulars and PET have reported the same contact person "Mr. Henry", specifically:
 - An archive of Energy Tubulars' website from July 2025 shows that Energy Tubulars' company contact person was given as "Mr. Henry".⁶⁸

⁵⁵ *Id.* at 7 and Exhibit 21.

⁵⁶ *Id.*

⁵⁷ See VASS Allegation at 6-7 and Exhibit 7.

⁵⁸ *Id.* at 7 and Exhibit 21.

⁵⁹ See Haylier Allegation at 6-7 and Exhibit 15.

⁶⁰ *Id.* at 7 and Exhibit 2.

⁶¹ *Id.* at 7 and Exhibit 21.

⁶² See Marmon/Keystone Allegation at 7 and Exhibit 15.

⁶³ *Id.* at 6-7 and Exhibit 15.

⁶⁴ See Tejas Tubular Allegation at 7 and Exhibit 15.

⁶⁵ *Id.* at 6-7 and Exhibit 21.

⁶⁶ See Allegations at 11.

⁶⁷ See Allegations at 11 and Exhibit 9. The original date of the Energy Tubulars API certificate was July 25, 2025 and is categorized with an active status. The original date of the PET API certificate was August 5, 2022 and the certificate status appears to have been canceled October 7, 2024 for "audit-related" reason.

⁶⁸ *Id.* at 12 and page 128 of Exhibit 12.

- An archive of PET’s website from 2023 shows that PET’s company contact person was given as “Mr. Henry”.⁶⁹
- 3) Energy Tubulars and PET each used the same photographs on their own websites or displayed photographs displaying “PET” insignia when “Energy Tubulars” would have been reasonably expected, specifically:
 - A photo on the Energy Tubulars archived website depicts “PET STEEL” insignia on production machinery.⁷⁰
 - Both the PET and Energy Tubulars’ archived websites contained some of the exact same photographs of production facilities and equipment.⁷¹
- 4) Website searches on Google reveal that many pages on the Energy Tubular website were titled “PETROLEUM EQUIPMENT (THAILAND) CO., LTD (PET)”.⁷²

Besides the links specifically between PET and Energy Tubulars, the Alleger points out that there are links between Energy Tubulars and China:

- 1) Energy Tubulars was registered in Thailand in December 2024 and is 100 percent owned by Chinese entities;⁷³
- 2) In March 2025, a website that had been established for Energy Tubulars was through a Chinese service provider.⁷⁴

Besides Energy Tubulars’ links to Chinese ownership and Chinese website service providers, the Alleger emphasizes evidence demonstrating links between Energy Tubulars and Chinese pipe manufacturing:

- 1) Energy Tubulars is linked to JS Steel Pipe. Specifically, the Energy Tubulars website gives a contact for “Mr. Henry” and an email matthew.wang@jssteelpipe.com; the domain ends in “@jssteelpipe.com”.⁷⁵
 - The significance of the JS Steel Pipe email domain is that JS Steel Pipe is a business name for Hebei Jinsheng Pipe Fitting Manufacturing Co., Ltd. which is a pipe manufacturer and dealer in Hebei, China that offers multiple standards and sizes of seamless pipe.⁷⁶ The JS Steel Pipe website references the name “JS Steel Pipes” as well as “Hebei Jinsheng Pipe Fitting Manufacturing Co., Ltd.” which demonstrates that both names are used interchangeably.⁷⁷

Besides JS Steel Pipe being a business name for a pipe manufacturer, JS Steel Pipe is additionally linked to the following two apparent pipe suppliers. Specifically, the JS Steel Pipe website gives contact information and a description of the merchandise supplied by the two companies:⁷⁸

- a) Jingjiang Zesheng International Trade Co., Ltd. (Jingjiang Zesheng International)

⁶⁹ See Allegations at page 18 of Exhibit 8.

⁷⁰ *Id.* at 12 and page 127 of Exhibit 12, which shows “PET STEEL” in the northwest corner of the photograph.

⁷¹ See Allegations at 12-13, and *e.g.*, Exhibit 8 at page 11 and Exhibit 12 at page 42.

⁷² See Allegations at 13 and Exhibit 14.

⁷³ *Id.* at 11 and Exhibit 10.

⁷⁴ *Id.* at 11 and Exhibit 11.

⁷⁵ *Id.* at 14 and page 128 of Exhibit 12.

⁷⁶ *Id.* at 14 and Exhibit 17.

⁷⁷ *Id.* at 14 and Exhibit 17.

⁷⁸ *Id.* at Exhibit 17.

- Jingjiang Zesheng International has reported that it can supply various types of pipe from China, including line pipe and OCTG.⁷⁹
- b) Zesheng Steel Singapore Pte. Ltd. (Zesheng Steel Singapore)
 - Zesheng Steel Singapore has reported that it can supply various types of pipe from China, including line pipe and OCTG.⁸⁰ The Allegers also provided evidence showing that Zesheng Steel Singapore had a July 2025 shipment of seamless carbon steel pipe from Energy Tubulars in Thailand.⁸¹ [

references to company names and business activities and relationships

].⁸²

In sum, the Allegers provided evidence showing that the same email point of contact “matthew.wang@jssteelpipe.com.” is shared by: a) Energy Tubulars (an alleged transshipment point),⁸³ b) JS Steel Pipe (a business name for a pipe manufacturer),⁸⁴ c) Jingjiang Zesheng International (an entity in China that advertises a supply of various types of pipe),⁸⁵ and d) Zesheng Steel Singapore (an entity in Singapore with Thai-origin pipe from Energy Tubulars).⁸⁶ Thus there are links between the Thai transshipment point and Chinese manufacturers and suppliers.

Initiation Assessment

In assessing the Allegations, CBP found that the information the Allegers submitted reasonably suggests that the Importers entered merchandise covered by the *AD/CVD Orders* into the customs territory of the United States through evasion.⁸⁷ Specifically, the Allegations indicated that the Importers entered Chinese-origin SLP pipe from Thailand exported from PET, Energy Tubulars, and other company names adopted by PET.⁸⁸ The following facts identified by the Allegers, considered together, reasonably suggested that the SLP pipe exported from PET, Energy Tubulars, and other company names adopted by PET was Chinese-origin:

1. EAPA investigations 7890 and 8164 both found evidence that the Thai exporter PET was engaged in evasion of AD/CVD Orders by shipping Chinese-origin merchandise subject to those AD/CVD Orders with the importers named in those respective investigations.
2. In other EAPA investigations, CBP conducted cargo examinations on entries that claimed the manufacturer was not PET; however, the entry documentation provided for the cargo examination revealed that “PET” was identified in the header in places where the other manufacturer would have been reasonably expected.

⁷⁹ *Id.* at 14 and Exhibit 18.

⁸⁰ *Id.* at 14 and Exhibit 18.

⁸¹ *Id.* at 14 and Exhibit 7.

⁸² *Id.* at 15 and Exhibit 19.

⁸³ *Id.* at page 128 of Exhibit 12.

⁸⁴ *Id.* at 14 and page 128 of Exhibit 12.

⁸⁵ *Id.* at Exhibit 18.

⁸⁶ *Id.* at Exhibit 18.

⁸⁷ *See* Allegations.

⁸⁸ *Id.*

3. In investigation 8164, CBP conducted a cargo exam in April 2025, where the entry summary listed VM Industry as the manufacturer, however, the cargo exam photo showed “PET Steel” was painted on the pipe, which demonstrated that PET was using names of other manufacturers (e.g., VM Industry) to attempt to enter merchandise being transshipped by PET
4. The Allegers provided information showing that PET and Energy Tubulars share contact information.
5. The Allegers have presented data showing entities importing from either: a) PET or b) Energy Tubulars. Since PET has engaged in evasion previously, the data reasonably suggests that these other company names with shipments would likewise be engaged in evasion. Similarly, since Energy Tubulars is at essentially the same address as PET and PET has engaged in evasion previously, the data reasonably suggests that entities with shipments from Energy Tubulars are likewise engaged in evasion.

Therefore, because Excellent Sharp, VASS, Haylier, Marmon/Keystone, and Tejas Tubular appeared to have received SLP pipe shipped from PET, Energy Tubulars, and other company names adopted by PET, a reasonable suggestion existed that the SLP pipe from PET that the importers entered is from China and covered by the *AD/CVD Orders*.

For the reasons set forth herein, CBP initiated an investigation under the authority of 19 U.S.C. § 1517(b)(1) on the Importers’ imports of covered merchandise that are alleged to be entered for consumption into the customs territory of the United States through evasion.⁸⁹ In addition, CBP noted that while it shall make a determination as to whether merchandise properly within the scope of the *AD/CVD Orders* was entered into the customs territory of the United States through evasion, the statute does not limit this determination to only the type of evasion for which the investigation was initiated.⁹⁰

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, TRLED will decide based on the record of the investigation if there is reasonable suspicion that merchandise covered by the AD/CVD orders was entered into the United States through evasion.⁹¹ CBP need only have sufficient evidence to support a reasonable suspicion that the Importers alleged to be evading entered merchandise covered by an AD or CVD order into the United States by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD or CVD cash deposits or other security.⁹² If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. As explained below, CBP is imposing interim measures because there is reasonable suspicion that the Importers entered Chinese-origin covered merchandise into the United States through evasion by means of transshipment.

CF-28 Questionnaires

⁸⁹ See also 19 C.F.R. § 165.15. The initiated investigation covered five consolidated importers. See Initiation of EAPA Investigations 8222 (Importer: Excellent Sharp), 8223 (Importer: VASS Pipe and Steel), 8242 (Importer: Haylier International), 8243 (Importer: Marmon/Keystone), and 8244 (Importer: Tejas Tubular Products) (Consolidated Case 8222)—Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe, dated November 20, 2025 (“Initiation Memo”) at 17.

⁹⁰ See 19 U.S.C. § 1517(c)(1)(A) and § 1517(h).

⁹¹ See 19 C.F.R. § 165.24(a).

⁹² See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

PET and Energy Tubulars Information

Additional investigation by CBP yielded more information linking PET and Energy Tubulars, as well as indicating a name change for Energy Tubulars.⁹³

After initiating this investigation, CBP issued CBP Form 28 (“CF-28”) requests for information to the following importers:⁹⁴

Importer	Entry Number	Entry # Last 4 Digits	Date CF-28 Issued	Entry MID	HTSUS
Excellent Sharp	[#]	5697	12/4/2025	Energy Tubulars	7304195020
Excellent Sharp	[#]	9813	12/4/2025		7304236030
					7304195020
					and
Haylier	[#]	6206	12/4/2025	VM Industry	7304195050
					7304195020
					and
Haylier	[#]	2858	12/4/2025	Petroleum Equipment	7304195050
					7304390020;
					7304390032;
					7304390036;
Marmon/Keystone	[#]	3538	12/4/2025	Petroleum Equipment	7304390072
Tejas Tubular	[#]	2499	12/4/2025	Petroleum Equipment	7304191030
Tejas Tubular	[#]	4057	12/4/2025	Petroleum Equipment	7304191030
VASS PIPE	[#]	7924	12/4/2025	[company name]	7304191080
VASS PIPE	[#]	2315	12/15/2025	TSP Precision	7304191080

In the CF-28s, CBP requested various information relating to the Importers’ POI entries, including:

- complete production records;
- raw materials information (*e.g.*, lists of raw materials, purchase orders, commercial invoices, proofs of payment, foreign customs declarations, factory production records, descriptions and photos of the equipment used in the production of pipe, and production capacities of the equipment used);
- factory information (*e.g.*, how long open for business, names of owners, names and titles of officers, and relationship, if any, with importer)
- entry information (*i.e.*, purchase orders, commercial invoices, proofs of payment, and bills of lading);

⁹³ See Memo to the File with Info Relating to PET and Energy Tubulars, dated January 16, 2026.

⁹⁴ As of the time of the initiation of the investigation, CBP did not observe in its systems any entries by VASS for which the currently identified country of origin was Thailand and the currently identified MID was PET or any of the other companies associated with PET (*e.g.*, Energy Tubulars). Public information linked VASS to shipments of seamless steel pipe from TSP (*see* Public Information obtained via Internet Linking TSP Precision and VASS, dated January 27, 2026), a Thai company that is discussed above.

- e) names of all forwarding agents, subcontractors, and intermediaries, and their contact information; and
- f) importer's email address.

CBP provided the importers 30 calendar days to respond to the CF-28s. Marmon/Keystone requested an extension of the deadline, and CBP extended its deadline to January 15, 2026.

CF-28 Responses

Excellent Sharp: Excellent Sharp did not submit a response to the CF-28 issued for Entry 5697 until several weeks after the deadline.⁹⁵ That response did not include the requested raw materials or production information, and, therefore, does not contain support for Thailand being the country of origin. The fact that the MID identified on the entry documentation was Energy Tubulars, which is discussed in detail above, suggests the merchandise may have originated in China.

Excellent Sharp submitted a timely response to the CF-28 issued for Entry 9813,⁹⁶ but it only consisted of certain sales-related documentation, did not include documentation indicating what it had actually ordered from the supplier (*e.g.*, purchase order). In addition, the response did not include the requested raw materials or production information. Consequently, there is no support for the country of origin claimed by the importer to be Thailand, and given the MID identified on the entry documentation was Energy Tubulars, suggesting the merchandise may have originated in China. The merchandise identified on the entry summary and various sales-related documentation indicates the merchandise was drill pipe, which would not be covered by the AD/CVD orders, but as noted above, other merchandise has been claimed to be drill pipe originating from Thailand where evidence indicated it was not. Furthermore, the Certificate of Origin included in the CF-28 response states that the merchandise was of a grade not typically associated with drill pipe,⁹⁷ suggesting the merchandise has not been described properly in documentation.

Haylier: Haylier's CF-28 responses for both Entry 6206 and Entry 2858⁹⁸ consisted of only the Entry Summaries (CBP Form 7501), and, therefore, contain no evidence the merchandise in question had a country of origin of Thailand. The HTSUS classification and product description on the Entry Summary documents are those that are associated with the scope of the AD/CVD orders. The identified MID for Entry 6206 was VM Industry (which, as referenced above, is linked to PET), and the identified MID for Entry 2858 was PET, which suggest the merchandise for both entries may have originated in China.

Marmon/Keystone: Marmon/Keystone submitted a CF-28 response for Entry 3538.⁹⁹ The MID identified for the entry is PET, which calls into question the identification of Thailand as the country of origin, and suggests the merchandise may have originated in China. The narrative response indicates Marmon/Keystone engaged a metals broker that it uses in other unrelated transactions to conduct an onsite visit of the PET facility in Thailand, and that while onsite, the metals broker recorded parts of PET's production process (*see* Attachments 3 and 4 of the entry

⁹⁵ See the January 27, 2026, RFI response for Entry 5697.

⁹⁶ See the December 5, 2025, RFI response for Entry 9813.

⁹⁷ See Grade Info Relating to Excellent Sharp (source GlobalSpec) and Grade Info Relating to Excellent Sharp (source Google AI), both dated January 15, 2026.

⁹⁸ See the December 8, 2025, RFI responses for Entry 6206 and Entry 2858.

⁹⁹ See the January 15, 2026, RFI response for Entry 3538.

package); however, even if the activity in those short videos pertains to a PET facility, it does not establish that the pipes in question, or any pipes in general, originated in the location or locations appearing in the videos. The production flowchart (*see* Attachment 6 of the entry package) also does not demonstrate what, if any, pipe production was occurring at a PET facility. The document provided to identify the inputs used to produce the SLP pipe refer to “[product]” for making “[product]” the latter being [product category], not SLP pipe, despite the fact that the mill test certificates in the response (*see* Attachments 13 through 18 of the entry package) reference [product category] standards. In any case, the “production records” that were provided (*see* Attachments 7 through 12 of the entry package), even if presumed to be genuine (which CBP does not presume, given its aforementioned experiences with PET), are not tied specifically to the imported merchandise.

The Working Listing Records provided as Attachment 19 of the entry package contain a substantial amount of information not translated into English, despite that being a requirement identified in the CF-28 instructions (*see e.g.* the second page of Attachment 1 of the entry package). The commercial invoice to Marmon/Keystone (*see* Attachment 20 of the entry package) and the packing list (*see* Attachment 21 of the entry package) were issued by [company name], which, as noted below, [company name and information]

The photos provided in the response (*see* Attachment 22 of the entry package) do not support the claim that the imported merchandise had country of origin Thailand, nor do the bill of lading (*see* Attachment 23 of the entry package) and “proof of payment” (*see* Attachment 24 of the entry package) documents. In short, the deficiencies and inconsistencies in the response, along with suggested ties to China of those associated with the entry (*e.g.*, PET and [company name]) support concluding the merchandise originated in China.

Tejas Tubular: Tejas Tubular submitted timely CF-28 responses for both Entry 2499 and Entry 4057,¹⁰⁰ both of which were classified as Type [#] entries. Both CF-28 response packages appear to contain documents that relate to other entries, as discussed below.

For Entry 2499, the Entry Summary document that references that entry is largely identical to an Entry Summary also included for another entry, Entry Number [#]3415 (“Entry 3415”), with prominent differences being the entry number itself and the date of entry, which is identified as 12/18/24 for Entry 2499, but 6/4/24 for Entry 3415. Both entries identify Thailand as the country of origin. Tejas Tubular did not provide any production-related documentation or any purchase order information. The MID for both entries was identified as PET, which further calls into question the identification of Thailand as the country of origin, and supports concluding the merchandise may have originated in China.

For Entry 4057, the Entry Summary identifying that entry is at the very end of the CF-28 response entry package, and is dated 02/05/2025, but the extent to which the other documents in the package relate to Entry 4057 is not clear. The initial page of the package is an Entry Summary for Entry Number [#]2657 (“Entry 2657”), and that document, and others in the CF-28 response, are dated in the year 2023. No production-related documentation was provided, nor was any purchase order information. The MID for Entry 4057 was identified at PET, which further calls into question the identification of Thailand as the country of origin, and supports concluding the merchandise may have originated in China. The MID for the unrequested Entry 2657 was identified as [company name], which, if the two

¹⁰⁰ *See* the December 8, 2025, CF-28 response for Entry 2499, and the December 5, 2025, CF-28 response for Entry 4057.

entries are related, further calls into question the identification of Thailand as the country of origin for Entry 4057, and supports concluding the merchandise may have originated in China.

On February 9, 2026, more than five weeks after the deadline for a response, Tejas Tubular submitted an additional CF-28 response for Entry 4057. The response opens with the pages of the CF-28 request itself, followed by two pages that appear to reference production processes associated with drill pipe. The next two pages are a purchase order with Tejas Tubular letterhead, which refers to both drill pipe and other merchandise (i.e., certain seamless steel tubing). What follow is a commercial invoice and a packing list with [company name

]letterhead, which does not appear to reference drill pipe, but does reference seamless steel tubing. The next two pages are mill test certificates, with the letterhead of [company name], and references to seamless steel tubing, but no apparent references to drill pipe. Next are two certificates of origin, identifying Thailand as the country of origin, but the response contains none of the actual requested production information. The next page is a document whose heading does not appear, but which references seamless steel tubing and [company name]. The subsequent page is what appears to be a list of bundles relating to bills of lading, with no product details or explanation. The six pages that follow are identified as Tejas Tubular “Work Order Production Summary” documents, whose connection with the imported merchandise, if any, is unexplained; furthermore, the top of each of those documents identifies a [location] with the phrase “[code and company name],” further calls into question the relevance of the pages in question. The remainder of this response consists of numerous pages of photographs relating to production processes and products, and a brief profile of the company itself. In short, this late response does not support the claim that Thailand was the actual country of origin of the merchandise, and much of the documentation appears to indicate the imported merchandise was SLP and associates that merchandise with parties linked to Chinese-origin merchandise (i.e., PET as the MID, and [company name]).

VASS: VASS did not submit a timely CF-28 response for either Entry 7924 or Entry 2315.

On February 2, 2026, more than four weeks after the deadline, VASS submitted a response for Entry 7924.¹⁰¹ That response did not include any of the production-related documentation that had been requested, nor did it include any purchase order information identifying the merchandise VASS had actually ordered, or an invoice or proof of payment. There are two apparently identical (other than some shading and a check mark) mill test certificates identifying pipe with an outside diameter that would be outside of the scope of the AD/CVD orders; however, the only dates on those documents are many years prior to the dates on the transaction-related documentation (e.g., export control sheet, packing list, and entry summary), and while it is possible the mill test certificates relate to the entered merchandise, the large time gap, along with missing other documentation, calls into question the relevance of those certificates. Furthermore, the entry summary indicates the merchandise was entered under a specific Section 232 tariff exclusion, and the corresponding public information regarding that exclusion granted to VASS identifies the manufacturers as either Chinese companies or TSP or PET,¹⁰² not the supposed manufacturer identified on the mill test certificates in the CF28 response.

Although the HTSUS number associated with both of these entries, 7304191080, is not normally associated with merchandise covered by the AD/CVD orders (due to outside diameter limitations identified in the scope), VASS does advertise seamless steel pipe products of types (e.g., line

¹⁰¹ See the February 2, 2026, CF-28 response for Entry 7924.

¹⁰² See the February 6, 2026, document containing VASS exclusion information.

pipe) with diameters covered by the scope on its website.¹⁰³ The failure of VASS to submit a complete CF28 response for Entry 7924, or any CF28 response for Entry 2315, along with the fact that TSP was a MID for the Entry 2315 and the identified manufacturer did not match those associated with the Section 232 product exclusion for Entry 7924 (but, rather, were Chinese manufacturers, TSP, and PET), suggest the possibility of evasion through misclassification and the incorrect identification of Thailand as the country of origin.

Additional Analysis

Marmon/Keystone Additional Entry

CBP identified an additional entry of interest relating to one of the importers, one for which CBP had documents in its systems outside the EAPA investigation. For Marmon/Keystone, CBP extracted from its systems documents related to Entry Number [#] 5756 (“Entry 5756”), for which the identified MID was PET. The importer had submitted the following entry documentation to CBP: an entry summary 7501 form; an ACE cargo release status form; commercial invoice number [#] between [company name] and Marmon/Keystone LLC which identifies the bank beneficiary as [company name]; pack list number [#] between [company name] and Marmon/Keystone LLC; five pages of [company name] mill test certificates; and, a bill of lading for booking number [#] indicating the shipper as [company name] and the consignee as Marmon/Keystone LLC at the address 1345 East Lexington Ave P.O. Box 2128 Pomona CA 91766.¹⁰⁴ CBP reviewed the documentation for Entry 5756, and found the following:

Cargo Description and Classification

The entry summary form for Entry 5756 indicates invoice number [#] is “[product category].” The HTSUS codes on page two of the entry summary form for entry [#] 5756 are 7304390072 and 7304390056, which are both associated with merchandise covered by the scope of the SLP Orders. The entry summary 7501 form and commercial invoice identify the country of origin for the SLP pipe as Thailand.¹⁰⁵ As discussed above, the identification of PET as the MID casts doubt that the pipe is genuinely Thai-origin, and suggests the merchandise may have originated in China.

Shared Contact Information

The phone number on the commercial invoice and the packing list for [company name] is [#], which is [item and company name], which the Allegations identify as a Chinese supplier of seamless pipe.¹⁰⁶ A [item] between different entities affirms the Allegations claim that there is coordination among the entities engaged in evasion of AD/CVD duties.

Mill Test Certificates Indicate Duplicate Chemical Compositions

¹⁰³ See Vass Product Information, dated January 8, 2026.

¹⁰⁴ See Documents for Marmon/Keystone December 20, 2024, Entry 5716 (“Marmon/Keystone Entry 5716 documents”).

¹⁰⁵ *Id.*

¹⁰⁶ See Allegation at Exhibit 18. See also Marmon/Keystone Entry 5716 documents.

For Entry 5756, the importer provided five mill test certificates that all indicated a tie to purchase order [#]; the mill test certificates included numbers: [numbers]. Mill test certificates [#] and [#] have the exact same chemical compositions, while other fields (*e.g.*, heat number, lot number, outer diameter, wall thickness, temperature thickness) in the two certificates differ and are unique.¹⁰⁷ Thus, it appears that a baseline mill test certificate may have been copied, and then fields changed, but it may not be expected that the chemical compositions are identical for two different heat number and lot numbers.

Summary of Analysis

Evidence submitted by Allegers indicates shipments of seamless pipe from Thailand to the Importers that may be subject to AD/CVD orders. This evidence links the Importers' entries to Thai companies previously identified in other EAPA investigations as transshippers of covered merchandise. Furthermore, the Importers failed to provide adequate responses to CF-28 requests. Combined with additional information, including documents related to an additional Marmon/Keystone entry and CBP's own investigation and research, there is reasonable suspicion that the Importers are evading the AD/CVD orders.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that the Importers entered Chinese-origin OCTG and SLP pipe subject to AD/CVD orders A-570-956, and C-570-957 into the United States through evasion by importing Chinese merchandise transshipped through a third country and declaring the merchandise as third country origin, and by misclassification of covered merchandise as merchandise not covered by the scope of the orders (*i.e.*, with outside diameter greater than that covered by the scope of the orders, or drill pipe). Therefore, CBP is imposing interim measures pursuant to this investigation.¹⁰⁸ Specifically, in accordance with 19 U.S.C. § 1517(e)(1)-(3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after November 20, 2025, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under section 1504(b) of this title, extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation, November 20, 2025; and
- (3) pursuant to the Commissioner's authority under section 1623 of this title, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.¹⁰⁹

In addition, for future entries, CBP will require live entry and reject any entry summaries that do not comply with live entry and require refiling of entries that are within the entry summary rejection period. CBP may also evaluate the Importers' continuous bonds to determine their sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

¹⁰⁷ See Marmon/Keystone Entry 5716 documents.

¹⁰⁸ See 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24.

¹⁰⁹ *See also* 19 C.F.R. § 165.24(b)(1)(i)-(iii).

For future submissions or factual information that you submit to CBP pursuant to this EAPA investigation, please provide a business confidential version and public version, with public summaries, to CBP via the EAPA Portal (aka the EAPA case management system (“CMS”)): <https://eapallegations.cbp.gov>. Documents uploaded to the CMS will constitute service on the parties to this investigation,¹¹⁰ and all administrative record documents will be available via the CMS. Please note that CBP is requiring that all documents submitted via the CMS are made text searchable, especially if those documents are submitted as PDFs.

Should you have any questions regarding this investigation, you may contact us at eapallegations@cbp.dhs.gov with “EAPA Cons. Case 8222” in the subject line of your email. Additional information on this investigation, including the applicable statute and regulations, may be found on CBP’s website at: <https://www.cbp.gov/trade/eapa>.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

¹¹⁰ See 19 C.F.R. § 165.4; *see also* 19 C.F.R. § 165.23(c) and 19 C.F.R. § 165.26.